Bicycle Newfoundland and Labrador (BNL)
DISCIPLINE AND COMPLAINTS POLICY

Purpose

1. Individuals are expected to fulfill certain responsibilities and obligations including, but not limited to, complying with the policies, Bylaws, rules and regulations of the Organization, and its Members (as applicable). Non-compliance may result in the imposition of sanctions pursuant to this Policy.

Application of this Policy

2. This Policy applies to all Individuals.

3. This Policy applies to matters that may arise during the business, activities, and events of the Organization and its Members (as applicable) including, but not limited to, competitions, practices and training, treatment or consultations (e.g., massage therapy), camps and clinics, travel associated with the activities of the Organization or a Member, events hosted by the Organization and its members, the office environment and any meetings.

4. This Policy also applies to Individuals' conduct outside of the business, activities, and events of the Organization and its Members (as applicable) when such conduct adversely affects the relationships of the Organization and/or a Member (and the work and sport environment) or is detrimental to the image and reputation of the Organization or a Member. Accordingly, applicability of this Policy will be determined by the Independent Third Party, who may consult with the Organization or a Member in making this determination.

5. This Policy applies to alleged breaches of the Code of Conduct and Ethics by Individuals who are no longer active in the sport where any claim regarding a potential breach of the Code of Conduct and Ethics occurred when the Individual was active in the sport.

6. In addition, this Policy will apply to breaches of the Code of Conduct and Ethics that occurred when the Individuals involved interacted due to their mutual involvement in the sport or, if the breach occurred outside of the sport environment, if the breach has a serious and detrimental impact on the Individual(s).

7. Applicability of this Policy will be determined by the Independent Third Party at its sole discretion and shall not be subject to appeal.

8. In the event that it is considered appropriate or necessary on the basis of the circumstances, immediate discipline or the imposition of a sanction or provisional measure may be applied, after which further discipline or sanctions may be applied according to this Policy. Any infractions or complaints occurring within competition will be dealt with by the procedures specific to the competition, if applicable. In such situations, disciplinary sanctions may be for the duration of the competition, training, activity, or event only.

9. In addition to being subject to disciplinary action pursuant to this Discipline and Complaints Policy, an employee of the Organization or a Member who is a Respondent to a complaint may also be subject to consequences in accordance with the employee's Employment Agreement or policies for human resources, if applicable.

Minors

10. Complaints may be brought for or against an Individual who is a Minor. Minors must have a parent/guardian or other adult serve as their representative during this process.

11. Communication from the Case Manager, Discipline Chair or Discipline Panel (as applicable) must be directed to the Minor's representative.

12. A Minor is not required to attend an oral hearing, if held.

13. A Discipline Panel may take reasonable measures to support a minor's participation in a disciplinary process.

Reporting a Complaint

14. Any person may report a complaint to the Organization or a Member or to the Independent Third Party:

    ITP Sport: https://app.integritycounts.ca/org/itpsport

15. When a complaint is reported to the Organization or a Member, the Organization or Member will report the complaint to the Independent Third Party and will have no involvement in the matter unless required by the discipline process.

16. At the discretion of the Organization or a Member (as applicable), the Organization or a Member may act as the Complainant and initiate the complaint process under the terms of this Policy. In such cases, the Organization will identify an individual to represent the Organization or a Member.

17. Complaints or incident reports should be made in writing and the person making the complaint may contact the Independent Third Party for direction. The Independent Third Party may accept any report, in writing or not, at their sole discretion.

Abuse Free Sport Participants

18. Incidents that involve alleged Maltreatment or Prohibited Behaviour involving a Sport Integrity Canada participant must be reported to Sport Integrity Canada and will be addressed pursuant to the Sport Integrity Canada's policies and procedures.

19. Sport Integrity Canada shall determine the admissibility of such complaints in accordance with the relevant and applicable Sport Integrity Canada Guidelines regarding the initial review and preliminary assessment, at their sole discretion.

20. If the Independent Third Party receives a complaint that they consider would otherwise fall within the above sections, they shall refer the matter to Sport Integrity Canada and notify the Individual(s) that made the complaint of such action within seven days of referring the matter to Sport Integrity Canada.

Independent Third Party Responsibilities

21. Upon receipt of a complaint from an Individual (or Individuals), the Independent Third Party shall determine whether the complaint should be handled by the Independent Third Party for BNL, or the Organization.

22. The Independent Third Party shall make this determination by taking into consideration whether the incident has occurred within the business, activities or events of the Organization of a Member, or if Clause 4 or 5 of this Policy may be

applied.

23. Notwithstanding the above, the Case Manager may direct a complaint to be managed by the Organization if the Member is otherwise unable to manage the complaint for valid and justifiable reasons, such as a conflict of interest or due to a lack of capacity.

24. The Independent Third Party may determine that the alleged incident may require investigation. In this case, the Independent Third Party may appoint an Investigator who will investigate the complaint.

25. Upon receipt of a complaint, the Independent Third Party has a responsibility to:
    a. Determine whether the complaint is frivolous and/or within the jurisdiction of this Policy;
    b. Determine the appropriate jurisdiction to manage the complaint:[1]
    c. Propose the use of alternate dispute resolution techniques;
    d. Determine that the alleged incident may require an investigation. The **Case Manager** may also appoint an Investigator to investigate the complaint; and/or
    e. Choose which process should be followed, and may use the following examples as a general guideline:
        i. Process #1 - the Complaint alleges the following incidents:
            1. Disrespectful conduct
            2. Minor incidents of violence (e.g., tripping, pushing, elbowing)
            3. Conduct contrary to the values of the Organization or a Member
            4. Non-compliance with the Organization's policies, procedures, rules, or regulations
            5. Minor violations of the Code of Conduct and Ethics
            6. Pranks, jokes, or other activities that cause harm to others
            7. Conduct that intentionally interferes with a competition or with any athlete's preparation for a competition
            8. Consistent disregard for the Bylaws, policies, rules, and regulations
            9. Major or repeated violations of the Code of Conduct and Ethics

[1] This excludes the decision making in Process#1 regarding if the Organization or Member will address the complaint

10. Any possession or use of banned performance enhancing drugs or methods that is not addressed by CCES or designated anti-doping agency. Home | Sport Integrity Canada
11. Abusive use of alcohol, any use or possession of alcohol by minors, or use or possession of illicit drugs and narcotics
12. Intentionally damaging the organization's property or improperly handling the organization's monies.

ii. Process #2 - the Complaint alleges the following incidents:

1. Prohibited Behaviour as defined by the UCCMS https://sportintegritycommissioner.ca/uccms
2. Any incident of hazing
3. Behaviour that constitutes Harassment, Sexual Harassment, or Sexual Misconduct
4. Major incidents of violence (e.g., fighting, attacking, sucker punching)
5. A conviction for any Criminal Code offense as it relates to Maltreatment and/or Prohibited Behaviour

26. If an Organization due to a conflict of interest, capacity concern or other valid and justifiable reason cannot address a Process #1 complaint, they may refer the matter to the Independent Third Party for BNL. The decision to accept or deny the referral is at the discretion of BNL.

27. If the Independent Third Party determines the complaint is frivolous or outside the jurisdiction of this Policy, the complaint will be dismissed immediately.

28. The Independent Third Party's decision to accept or dismiss the complaint may not be appealed.

Process #1: Handled by Complaint Resolution Officer

Complaint Resolution Officer

29. Following the determination that the complaint or incident should be handled under Process #1, the Organization shall determine whether the complaint should be handled by the Organization or by a Member Organization.[2]

30. The Organization or appointed Case Manager shall make this determination by taking into consideration whether the incident has occurred within the business, activities or events of the Organization of a Member.

31. Notwithstanding the above, the Organization may direct a complaint to be managed by the Organization if the Member is otherwise unable to manage the complaint for valid and justifiable reasons, such as a conflict of interest or due to a lack of capacity.

32. If the Organization determines that the complaint or incident should be handled by a Member, that Member shall appoint its own Complaint Resolution Officer to fulfil the responsibilities listed below. In such instance, any reference to Complaint Resolution Officer below shall be understood as a reference to the Member's Complaint Resolution Officer.

33. The Complaint Resolution Officer must be an independent individual, established solely for the purpose of adjudicating the infractions brought before it pursuant to this Policy. At the Organization's discretion, an external individual with the necessary expertise may be appointed to fulfill this role.

34. Once the complaint is accepted, the Complaint Resolution Officer will:
    a. Provide the complaint to the respondent.
    b. The Complaint Resolution Officer will take all possible steps to address the dispute through Alternative Dispute Resolution, including Mediation.
    c. If unsuccessful in resolving the matter through Alternative Dispute Resolution, the Complaint Resolution Officer will decide on the format under which the complaint will be heard. The format may be a documentary hearing (summary proceeding) or oral hearing.
    d. The decision on format of hearing by the Complaint Resolution Officer is not subject to appeal.

[2] The Organization may appoint a Case Manager who will determine whether the complaint should be handled by the Organization or by a Member Organization, and administer Process #1.

e. Within 10 days of the Appointment of the Complaint Resolution Officer the Complainant will provide a brief to both the Complaint Resolution Officer and the Respondent. The written brief shall be a maximum of 5 pages setting out the Complainants position on the issues raised in the complaint.
f. The documents the Complainant considers relevant or wishes to rely on will be a maximum of 10 documents and 200 pages.
    i. For clarity, a series of connected documents such as a series of emails or a series of letters may be considered one document.
g. Within 15 business days of receipt of the Complainant's brief, the Respondent will provide to both the Complaint Resolution Officer and the Complainant a written brief. The written brief will be a maximum 5 pages in length which sets out the Respondent's position on the issues contained in the complaint.
h. Any documentary evidence that the Respondent wishes to rely on will be a maximum 10 documents and 200 pages.
    i. For clarity, a series of connected documents such as a series of emails or a series of letters may be considered one document.
i. Both Parties shall also have the right to submit to the Complaint Resolution Officer any relevant evidence, including, but not limited to witness statements, documentary evidence or evidence from other media (i.e., photos, screenshots, videos, or other recordings)
j. Within 15 business days of receipt of the Respondent's response the Complainant may submit to both the Complaint Resolution Officer and the Respondent a reply statement. The maximum length of the reply statement is 5 pages.
k. No further documents may be submitted.
l. For cases requiring an oral hearing, the Complaint Resolution Officer will ask the Complainant and the Respondent for oral submissions in addition to written submissions regarding the complaint or incident.
m. In the case of oral submissions, each Party shall be present when such submissions are made (unless waived by a Party); and/or:
n. Following receipt of the Parties' submissions, the Complaint Resolution Officer may convene the Parties to a meeting, either in person or by way of video or teleconference to ask the Parties questions and to allow the Parties to ask questions of one another.

35. Following their review of the submissions and evidence related to the complaint, the Complaint Resolution Officer shall determine if any of the incidents alleged above have occurred and, if so, determine whether to impose a sanction and, if so, determine the appropriate sanction.

36. If, after hearing the Parties and reviewing their submissions, the Complaint Resolution Officer considers that none of the incidents alleged above have occurred, they shall dismiss the complaint.

37. The Complaint Resolution Officer will inform the Parties of the decision, which shall be in writing and include reasons.

38. The Complaint Resolution Officer decision will take effect immediately, unless specified otherwise by the Complaint Resolution Officer.

39. Should the circumstances require a decision to be rendered immediately or within a short timeline, the Complaint Resolution Officer may render a short decision, either orally or in writing, followed by a written reasoned decision.

40. Any decision rendered by the Complaint Resolution Officer shall be provided to and maintained in the records of the relevant affiliated organization, and Member Organization.

41. Records of all sanctions will be maintained by the Organization and the Member. Members will disclose all decisions to the Organization, which may disclose such decisions at its discretion.

Process #2: Handled by Case Manager

Case Manager

42. Following the determination that the complaint or incident should be handled under Process #2, the Independent Third Party for BNL Case Manager has a responsibility to:
    a. Propose the use of alternate dispute resolution techniques
    b. Appoint the Discipline Panel, if necessary

c. Coordinate all administrative aspects and set timelines
d. Provide administrative assistance and logistical support to the Discipline Panel as required
e. Provide any other service or support that may be necessary to ensure a fair and timely proceeding

43. The Case Manager will establish and adhere to timelines that ensure procedural fairness and that the matter is heard in a timely fashion.

44. The Case Manager may propose using alternate dispute resolution with the objective of resolving the dispute. If applicable, and if the dispute is not resolved, or if the parties refuse to attempt alternate dispute resolution (such as mediation or a negotiated settlement) the Case Manager will appoint a Discipline Panel, which shall consist of a single Arbitrator, to hear the complaint. At the discretion of the Case Manager, a Discipline Panel of three persons may be appointed to hear the complaint. In this event, the Case Manager will appoint one of the Discipline Panel's members to serve as the Chair.

45. The Case Manager, in cooperation with the Discipline Panel, will then decide the format under which the complaint will be heard. This decision may not be appealed. The format of the hearing may be an oral in-person hearing, an oral hearing by telephone or other communication medium, a hearing based on a review of documentary evidence submitted in advance of the hearing, or a combination of these methods. The hearing will be governed by the procedures that the Case Manager and the Discipline Panel deem appropriate in the circumstances, provided that:
    a. The Parties will be given appropriate notice of the day, time, and place of the hearing, in the case of an oral in-person hearing or an oral hearing by telephone or other communication medium.
    b. Copies of any written documents which the parties wish to have the Discipline Panel consider will be provided to all Parties, through the Case Manager, in advance of the hearing.
    c. The Parties may engage a representative, advisor, or legal counsel at their own expense.
    d. The Discipline Panel may request that any other individual participate and give evidence at the hearing.

e. The Discipline Panel may allow as evidence at the hearing any oral evidence and document or thing relevant to the subject matter of the complaint, but may exclude such evidence that is unduly repetitious, and shall place such weight on the evidence as it deems appropriate.
f. The decision will be by a majority vote of the Discipline Panel.

46. If the Respondent acknowledges the facts of the incident, the Respondent may waive the hearing, in which case the Discipline Panel will determine the appropriate sanction. The Discipline Panel may still hold a hearing for the purpose of determining an appropriate sanction.

47. The hearing will proceed in any event, even if a Party chooses not to participate in the hearing.

48. In fulfilling its duties, the Discipline Panel may obtain independent advice.

Decision

49. After hearing the matter, the Discipline Panel will determine whether an infraction has occurred and, if so, the sanctions to be imposed. Within fourteen (14) days of the hearing's conclusion, the Discipline Panel's written decision, with reasons, will be distributed to all parties, the Case Manager, to the Organization and the Member. In extraordinary circumstances, the Discipline Panel may first issue a verbal or summary decision soon after the hearing's conclusion, with the full written decision to be issued before the end of the fourteen (14) day period. The decision will be considered a matter of public record unless decided otherwise by the Discipline Panel.

Sanctions

50. The Discipline Panel may apply the following disciplinary sanctions, singularly or in combination:
    a. Verbal or written reprimand
    b. Verbal or written apology
    c. Service or other contribution to the Organization or a Member
    d. Removal of certain privileges
    e. Suspension from certain teams, events, and/or activities
    f. Suspension from certain activities for a designated period

g. Payment of the cost of repairs for property damage
h. Suspension of funding from the organization or from other sources
i. Expulsion from the organization
j. Any other sanction considered appropriate for the offense

51. Unless the Discipline Panel decides otherwise, any disciplinary sanctions will begin immediately, notwithstanding an appeal. Failure to comply with a sanction as determined by the Discipline Panel will result in an automatic suspension until such time as compliance occurs.

52. Records of all decisions will be maintained by the Organization and the Member (as applicable). Members will submit all records to the Organization.

Appeals

53. The decision of the Discipline Panel may be appealed in accordance with the Appeal Policy.

Suspension Pending a Hearing

54. The Organization or the Member (as applicable) may determine that an alleged incident is of such seriousness as to warrant suspension of an Individual pending completion of an investigation, criminal process, the hearing, or a decision of the Discipline Panel.

Criminal Convictions

55. The Organization or the Member (as applicable) may determine in its sole discretion that an Individual's conviction for a Criminal Code offense will be deemed an infraction under this Policy and will result in expulsion from the Organization or the Member (as applicable). Criminal Code offences may include, but are not limited to:
    a. Any child pornography offences
    b. Any sexual offences
    c. Any offence of physical violence
    d. Any offence of assault
    e. Any offence involving trafficking of illegal drugs

Confidentiality

56. The discipline and complaints process is confidential and involves only the Organization, the applicable Member(s), the parties, the Case Manager, the Discipline Chair, the Discipline Panel, and any independent advisors to the Discipline Panel. Once initiated and until a decision is released, none of the parties will disclose confidential information relating to the discipline or complaint to any person not involved in the proceedings.

57. Any failure to respect the aforementioned confidentiality requirement may result in further sanctions or discipline by the Discipline Chair or Discipline Panel (as applicable).

Timelines

58. If the circumstances of the complaint are such that adhering to the timelines outlined by this Policy will not allow a timely resolution to the complaint, the Case Manager may direct that these timelines be revised.

Records and Distribution of Decisions

59. Other individuals or organizations, including, but not limited to, national sport organizations, provincial/territorial sport organizations, sport clubs, etc., may be advised of any decisions rendered in accordance with this Policy at the discretion of BNL.

Definitions

1. Case Manager – An independent individual (or individuals) appointed by the Organization to receive and administer complaints under the Discipline and Complaints Policy
2. Complainant – the Party making a complaint
3. Days – Days including weekends and holidays
4. Discipline Chair – An individual appointed to handle the duties of the Discipline Chair as described in the Discipline and Complaints Policy
5. Harassment – A course of vexatious comment or conduct against an Individual or group, which is known or ought to reasonably be known to be unwelcome. Types of behaviour that constitute Harassment include, but are not limited to:
   a. Written or verbal abuse, threats, or outbursts;
   b. Persistent unwelcome remarks, jokes, comments, innuendo, or taunts;

c. Racial harassment, which is racial slurs, jokes, name calling, or insulting behaviour or terminology that reinforces stereotypes or discounts abilities because of racial or ethnic origin;
d. Leering or other suggestive or obscene gestures;
e. Condescending or patronizing behaviour which is intended to undermine self-esteem, diminish performance or adversely affect working conditions;
f. Practical jokes which endanger a person's safety, or may negatively affect performance;
g. Hazing, which is any form of conduct which exhibits any potentially humiliating, degrading, abusive, or dangerous activity expected of a junior-ranking individual by a more senior individual, which does not contribute to either individual's positive development, but is required to be accepted as part of a team or group, regardless of the junior-ranking individual's willingness to participate. This includes, but is not limited to, any activity, no matter how traditional or seemingly benign, that sets apart or alienates any teammate or group member based on class, number of years on the team or with the group, or ability;
h. Unwanted physical contact including, but not limited to, touching, petting, pinching, or kissing;
i. Deliberately excluding or socially isolating a person from a group or team;
j. Persistent sexual flirtations, advances, requests, or invitations;
k. Physical or sexual assault;
l. Contributing to a poisoned sport environment, which can include:
    i. Locations where material that is discriminatory is displayed (e.g., sexually explicit posters and racial/racist cartoons)
    ii. Groups where harassing behaviour is part of the normal course of activities
    iii. Behaviour that causes embarrassment, awkwardness, endangers a person's safety or negatively affects performance.
m. Behaviours such as those described above that are not directed towards a specific person or group but have the same effect of creating a negative or hostile environment; and
n. Retaliation or threats of retaliation against a person who reports harassment to the Organization or to a Member.

6. Individuals – Refers to all categories of members and/or registrants defined in the Bylaws of the Organization and in the Bylaws of a Member, as well as all people employed by, contracted by, or engaged in activities with the Organization or a Member including, but not limited to, employees, contractors, Athletes, coaches, instructors, officials, volunteers, managers, administrators, committee members, parents or guardians, spectators, committee members, and Directors and Officers.
7. Independent Third Party (ITP) - SportNL in partnership with Gov.NL appointed ITP Sport as the Independent Third Party (ITP).

8. Maltreatment – A volitional act by an Individual that results in harm or the potential for physical or psychological harm to another Individual, and includes any of the following behaviours or conduct:
   a. Psychological Maltreatment: any pattern or single serious incident of deliberate conduct that has the potential to be harmful to the psychological well-being of an Individual. Psychological Maltreatment is determined by the objective behaviour, and not whether harm is intended or results from the behaviour. It includes:
      i. Verbal Acts: verbally assaulting or attacking an Individual, including, but not limited to, unwarranted personal criticisms; body shaming; derogatory comments related to an Individual's identity (e.g., race, gender identity or expression, ethnicity, Indigenous status, ability/disability); comments that are demeaning, humiliating, belittling, intimidating, insulting or threatening; the use of rumours or false statements about an Individual to diminish their reputation; using confidential sport and non-sport information inappropriately. Verbal Maltreatment may also occur in online forms.
      ii. Non-Assaultive Physical Acts (no physical contact): physically aggressive behaviours, including, but not limited to, throwing objects at or in the presence of others without striking another; hitting, striking or punching objects in the presence of others.
      iii. Acts that Deny Attention or Support: acts of commission that deny attention, lack of support or isolation including, but not limited to, ignoring psychological needs or socially isolating an Individual repeatedly or for an extended period of time; abandonment of an Athlete as punishment for poor performance; arbitrarily or unreasonably denying feedback, training opportunities, support or attention for extended periods of time and/or asking others to do the same.
   b. Physical Maltreatment: any pattern or single serious incident of deliberate conduct that has the potential to be harmful to the physical well-being of an Individual. Physical Maltreatment is determined by the objective behaviour, and not whether harm is intended or results from the behaviour. It includes, without limitation:
      i. Contact behaviours: including, but not limited to, deliberately punching, kicking, beating, biting, striking, strangling or slapping another; deliberately hitting another with an object.
      ii. Non-contact behaviours: including, but not limited to, isolating an Individual in a confined space; forcing an Individual to assume a painful stance or position for no athletic purpose (e.g., requiring an Athlete to kneel on a hard surface); the use of exercise for the purposes of punishment; withholding, recommending against, or denying adequate hydration, nutrition, medical attention or sleep; denying access to a toilet; providing alcohol to an Individual under the legal drinking age; providing illegal drugs or non-prescribed medications to an Individual; encouraging or knowingly

permitting an Athlete to return to play prematurely following any injury or after a concussion and without the clearance of a medical professional; encouraging an Athlete to perform a skill for which they are known to not be developmentally ready.

c. Sexual Maltreatment, including, but not limited to, any act targeting an Individual's sexuality, gender identity or expression, that is committed, threatened or attempted against that person, and includes, but is not limited to, the Criminal Code offences of sexual assault, sexual exploitation, sexual interference, invitation to sexual touching, indecent exposure, voyeurism and non-consensual distribution of sexual/intimate images. Sexual Maltreatment also includes sexual harassment and stalking, cyber harassment, and cyber stalking of a sexual nature. Examples of Sexual Maltreatment include, but are not limited to:
    1. Any penetration of any part of a person's body, however slight, with any object or body part by a person upon another person, including, but not limited to:
        1. vaginal penetration by a penis, object, tongue, or finger; and
        2. anal penetration by a penis, object, tongue, or finger.
    2. Any intentional touching of a sexual nature of any part of a person's body, however slight, with any object or body part by a person upon another person, including, but not limited to:
        1. kissing;
        2. intentional touching of the breasts, buttocks, groin or genitals, whether clothed or unclothed, or intentionally touching of another with any of these body parts;
        3. any contact, no matter how slight, between the mouth of one person and the genitalia of another person;
        4. making a person touch themselves or someone else with or on any of the body parts listed in 2); and
        5. any intentional touching in a sexualized manner.

d. Neglect: any pattern or a single serious incident of lack of reasonable care, inattention to an Individual's needs, nurturing or well-being, or omissions in care. Neglect is determined by the objective behaviour but the behaviour must be evaluated with consideration given to the Individual's needs and requirements, not whether harm is intended or results from the behaviour. Neglect, or acts of omission, include without limitation, not providing an Athlete recovery time and/or treatment for a sport injury; not being aware of and not considering an Individual's physical or intellectual disability; not considering supervision of an Athlete during travel, training or competition; not considering the welfare of the Athlete when prescribing dieting or other weight control methods; disregarding the use of prohibited substances by an Athlete; failure to ensure safety of equipment or environment; allowing an Athlete to disregard sport rules, regulations, and standards, or subjecting Individuals to the risk of Maltreatment.

e. Grooming: includes, without limitation, deliberate conduct by an Individual to sexualize a relationship with a Minor, and which includes making inappropriate behaviour seem normal and gradually engaging in 'boundary violations' which have been professionally identified to Canadian standards (e.g., a degrading remark, a sexual joke, sexualized physical contact; adult participants sharing rooms with a Minor who is not an immediate family member; providing a massage or other purported therapeutic interventions with no specific training or expertise; private social media and text communications; sharing personal photographs; shared use of locker rooms; private meetings; private travel; and providing gifts).
f. Interference with or manipulation of process:
    i. An adult Individual violates the Code of Conduct and Ethics by directly or indirectly interfering with a process instituted pursuant to this Code or any other policy found in the Safe Sport Policy Manual by:
        1. falsifying, distorting, or misrepresenting information, the resolution process, or an outcome;
        2. destroying or concealing information;
        3. attempting to discourage an Individual's proper participation in or use of the processes of the Organization or a Member;
        4. harassing or intimidating (verbally or physically) any person involved in the processes of the Organization or a Member before, during, and/or following any proceedings;
        5. publicly disclosing an Individual's identifying information, without the Individual's agreement;
        6. failing to comply with any temporary or provisional measure or other final sanction;
        7. distributing or otherwise publicizing materials an Individual gains access to during any investigation or hearing, except as required by law or as expressly permitted; or
        8. influencing or attempting to influence another Individual to interfere with or manipulate the process.
g. Retaliation: An Individual shall not take an adverse action against any other Individual for making a good faith report of possible Maltreatment or for participating in any process found in a policy included in the Safe Sport Policy Manual. Retaliation includes threatening, intimidating, harassing, coercing or any other conduct that would discourage a reasonable person from engaging or participating in the processes of the Organization or a Member. Retaliation after the conclusion of investigation and sanction processes is also prohibited. Retaliation may be present even where there is a finding that no Maltreatment occurred. Retaliation does not include good-faith actions lawfully pursued in response to a report of possible Maltreatment.
h. Aiding and abetting:

i. Any act taken with the purpose of facilitating, promoting, or encouraging the commission of Maltreatment by an Individual. Aiding and abetting also includes, without limitation, knowingly:
   1. allowing any person who has been suspended or is otherwise ineligible to be in any way associated with sport or to coach or instruct Individuals;
   2. providing any coaching-related advice or service to an Athlete who has been suspended or is otherwise ineligible; and
   3. allowing any Individual to violate the terms of their suspension or any other sanctions imposed.

i. Failure by an adult Individual to report actual or suspected Maltreatment of a Minor: This obligation is ongoing and is not satisfied by making an initial report; instead, this obligation includes reporting to the Organization or a Member, on a timely basis, all relevant information that the adult Individual is or becomes aware of, and requires making a direct report to the Organization or a Member. Any report shall include the personally identifying information of the potential Minor complainant (to the extent known), and any such information learned at a later date.

j. Failure to report inappropriate conduct: Any Individual who suspects or becomes aware of another Individual's inappropriate conduct, even if it is not defined as Maltreatment, has a duty to report such inappropriate conduct to the Organization or a Member. Individuals in positions of trust and authority who become aware of another Individual's inappropriate conduct have a responsibility for reporting the concern within their organization's policies and procedures.

k. Intentionally filing a false allegation: An allegation is false if the events or conduct reported did not occur and the Individual making the report knows that the events or conduct did not occur. An Individual shall not be considered to have filed a false allegation in cases where the allegation cannot be substantiated by supporting evidence but was nevertheless filed in good faith.

9. Members" – Leagues, Affiliated Clubs and other groups that are members of the Organization
10. Minor – Any Individual who is under the age of majority at the time and in the jurisdiction where the alleged Maltreatment has occurred. Adults are responsible for knowing the age of majority. For the purpose of protection in Newfoundland and Labrador, the age of majority is defined as 19 years old
11. Organization – Bicycle Newfoundland and Labrador (BNL)
12. Parties – the groups involved with the particular dispute. In the Discipline and Complaints Policy, the Parties are the Complainant and Respondent. In the Appeal Policy, the Parties are the Appellant, Respondent, and any Affected Party
13. Respondent – The party responding to a complaint or, in the case of an appeal, the body whose decision is being appealed

14. Sexual Harassment – A course of vexatious comment or conduct against an Individual because of sex, sexual orientation, gender identity or gender expression, where the course of comment or conduct is known or ought reasonably to be known to be unwelcome; or making a sexual solicitation or advance where the person making the solicitation or advance is in a position to confer, grant or deny a benefit or advance to the Individual and the person knows or ought reasonably to know that the solicitation or advance is unwelcome. Types of behaviour that constitute Sexual Harassment include, but are not limited to:
    i. Sexist jokes;
    ii. Threats, punishment, or denial of a benefit for refusing a sexual advance;
    iii. Offering a benefit in exchange for a sexual favour;
    iv. Demanding hugs;
    v. Bragging about sexual ability;
    vi. Leering (persistent sexual staring);
    vii. Sexual assault;
    viii. Display of sexually offensive material;
    ix. Distributing sexually explicit messages or attachments such as pictures or video files;
    x. Sexually degrading words used to describe an Individual;
    xi. Unwelcome inquiries into or comments about an Individual's gender identity or physical appearance;
    xii. Inquiries or comments about an Individual's sex life;
    xiii. Persistent, unwanted attention after a consensual relationship ends;
    xiv. Persistent unwelcome sexual flirtations, advances, comments or propositions; and
    xv. Persistent unwanted contact.

Policy History	
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